

(*Id.* at 988.)

The County argued the plaintiff had failed to comply with the GCA because her claim was never presented to or received by a statutorily designated recipient. In response, the plaintiff argued that she had substantially complied with the GCA through her attorney's letter, which was delivered to and received by the risk management department as "the county department most directly involved with the processing and defense of tort claims against the County." (*Id.* at 989.)

On appeal, the Supreme Court rejected the plaintiff's substantial compliance argument, noting that section 915 by its "plain language" required either presentation to one of the statute's designated recipients or actual receipt of notice by a proper recipient. (*Id.* at 992.) It stated that section 915(a)(1) reflects the Legislature's intent to precisely identify those who may receive claims on behalf of a local public entity. Section 915(e)(1) reflects the Legislature's intent that a misdirected claim will satisfy the presentation requirement if the claim is "actually received" by a statutorily designated recipient. Thus, compliance with section 915(e)(1) requires actual receipt of the misdirected claim by one of the designated recipients. If an appropriate public employee or board never receives the claim, an undelivered or misdirected claim fails to comply with the statute. (*Id.* at 992-93.)

The Court also rejected the lower court's holding that section 915 could be satisfied if a claimant were to serve a party who may have had a duty to notify one of the statutorily designated recipients. "[B]y focusing on the duty of a public employee in receipt of a claim to forward the claim to the proper agency, [the appellate court] inappropriately shifts responsibility for filing a claim with the proper official or body from the claimant to the public entity." (*Id.* at 996.) The Court stated, if the lower court's ruling were followed, much uncertainty would be introduced "about how and where claims must be delivered" which would be "contrary to the [GCA's] goal of eliminating uncertainty in the claims-presentation requirements." (*Id.* at 997.)

Plaintiff argues the facts of this case are distinguishable because the letter in *DiCampli-Mintz* was delivered to a hospital sub-department, whereas his claim was mailed to the District's principal office where its Board sits, such that none of the concerns noted in *DiCampli-Mintz* are implicated. Plaintiff argues the only defect here is Defendant's asserted "preference" that the envelope containing a claim be addressed to a specific internal recipient rather than "Risk Management." Plaintiff further argues that Defendant waived any defect under Government Code section 910.8 by failing to provide notice of any deficiency.

There is no dispute that Plaintiff's claim was not sent to the District's clerk, secretary, auditor, or governing board, and the complaint does not allege actual receipt by any such official. However, at this stage, the Court need not determine whether *DiCampli-Mintz* ultimately bars Plaintiff's claim for negligence, or whether Defendant waived any defect. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff claims he can plead "additional facts regarding precise address, actual receipt *and routing*..." (Opp. 11:12-13, emphasis added.) Under these circumstances, the Court finds it appropriate to grant leave for Plaintiff to allege facts demonstrating or excusing compliance with the GCA's claim-presentation requirements or otherwise supporting a defense to Defendant's assertion of noncompliance.

Accordingly, Defendant's demurrer is sustained, and Plaintiff is granted leave to amend. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of the notice of entry of the order to file and serve an amended complaint.

4. 9:00 AM CASE NUMBER: C25-00530
CASE NAME: SEAN KARIMIAN VS. GEMDALE 85 CLEAVELAND ROAD, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GEMDALE 85 CLEAVELAND ROAD, LLC
TENTATIVE RULING:

The demurrer, filed by defendant Gemdale 85 Cleaveland Road, LLC, is **sustained without leave to amend as to the fourth cause of action and otherwise overruled**, as discussed below. Defendant shall file its answer on or before December 22, 2025.

I. Factual Background

The complaint here involves defendant, Gemdale's construction project adjacent to plaintiff's property. Plaintiff contends defendant unlawfully removed a fence on his property and installed a temporary fence. (Complaint, ¶7.) In doing so, plaintiff contends that defendant damaged a 23-year-old tree on plaintiff's property. (*Ibid.*) Plaintiff further contends that defendant placed its fence well into the boundary of plaintiff's property, constituting a trespass. (*Id.* at ¶18.) Defendant's activity caused destabilization and collapse of the side fences on plaintiff's property. (*Ibid.*) Plaintiff earns income by leasing the property to tenants. (*Id.* at ¶19.) The unauthorized trespassing and damage have rendered plaintiff's property unsafe and uninhabitable for tenants, resulting in financial losses due to inability to rent the property. (*Ibid.*)

Plaintiff filed the complaint on February 25, 2025, alleging seven causes of action with the following titles: (1) Negligence, (2) Trespass, (3) Trespass to Timber, (4) Negligent Interference with Contractual Relations, (5) Intentional Interference with Contractual Relations, (6) Negligent Interference with Prospective Economic Relations, and (7) Intentional Interference with Prospective Economic Relations.

After meeting and conferring with plaintiff, as required by Code of Civil Procedure, section 430.41, defendant filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), targeting the fourth through seventh causes of action. Plaintiff opposes the demurrer.

II. Evidentiary Matters

Defendant's request for judicial notice of the complaint is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. Uncertainty (All Causes of Action)

Defendant demurs on the basis that causes of action 4-7 are uncertain. The argument offered is four sentences long, conclusory, and offers no analysis. The Court disagrees that the complaint is so

unintelligible that the defendant cannot know what is being pleaded. Uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) The complaint here meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 ["demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

The demurrer based on uncertainty is overruled with respect to all challenged causes of action.

B. Sufficiency of facts

1) Fourth Cause of Action (Negligent Interference with Contractual Relations)

Defendant demurs to the fourth cause of action on the basis that there is no recognized tort in California for the negligence interference with contractual relations. Defendant provides authority on point. (*Davis v. Nadrich* (2009) 174 Cal.App.4th 1, 9.)

Plaintiff's opposition argues the point together with its discussion of the sixth cause of action for negligent interference with prospective economic relations. Aside from citing *Nelson v. Tucker Ellis LLP* (2020) 48 Cal.App.5th 827, plaintiff does not directly address the argument regarding the non-recognition of this tort. In *Nelson*, the cause of action was alleged in combination with negligent interference with prospective economic advantage, which is separately alleged in our case. (See *id.* at 844, fn. 5.)

The demurrer to the fourth cause of action is sustained. Because plaintiff offers no facts that would permit pleading this cause of action separately from the sixth, leave to amend is denied.

2) Fifth Cause of Action (Intentional Interference with Contractual Relations)

Defendant demurs to the fifth cause of action on the basis that plaintiff fails to state sufficient facts. "The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126, internal citations omitted.) Specifically, defendant argues plaintiff does not plead facts showing the existence of an enforceable contract, or defendant's knowledge of such a contract.

Plaintiff states in paragraphs 33-34 that defendant knew of his relationship with his tenants, but defendant contends the statement is conclusory. A complaint need only state the facts constituting the cause of action in ordinary and concise language. (Code Civ. Proc., § 425.10 (a)(1).) With respect to matters of which the defendant has superior or co-extensive knowledge, such as allegations regarding knowledge or intent, less particularity is required so long as the pleading gives notice of the issues sufficient to enable preparation of a defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550)

The demurrer is overruled as to the fifth cause of action.

3) Sixth Cause of Action (Negligent Interference with Prospective Economic Relations)

Defendant demurs to the sixth cause of action on the basis that plaintiff fails to state sufficient

facts. “The elements of negligent interference with prospective economic advantage are (1) the existence of an economic relationship between the plaintiff and a third party containing the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) the defendant’s knowledge (actual or construed) that the relationship would be disrupted if the defendant failed to act with reasonable care; (4) the defendant’s failure to act with reasonable care; (5) actual disruption of the relationship; (6) and economic harm proximately caused by the defendant’s negligence.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal.App.5th 989, 1005.) As with the fifth cause of action, defendant argues plaintiff does not plead facts showing defendant’s knowledge of any economic relationship.

Plaintiff states in paragraphs 39-40 that defendant knew of his relationships with tenants. As noted above, defendant contends the statement is conclusory. A complaint need only state the facts constituting the cause of action in ordinary and concise language. (Code Civ. Proc., § 425.10 (a)(1).) With respect to matters of which the defendant has superior or co-extensive knowledge, such as allegations regarding knowledge or intent, less particularity is required so long as the pleading gives notice of the issues sufficient to enable preparation of a defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550)

The demurrer is overruled as to the sixth cause of action.

4) Seventh Cause of Action (Intentional Interference with Prospective Economic Relations)

Defendant contends that the seventh cause of action fails for the same reasons discussed above. Specifically, that plaintiff fails to plead facts to support that defendant knew of any economic relationship that would benefit plaintiff. For the same reasons as discussed above, the argument is rejected and the demurrer to the seventh cause of action is overruled.

5. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK NATIONAL ASSOCIATION
TENTATIVE RULING:

Introduction

Before the Court is Defendants JPMorgan Chase Bank, N.A. and Stacey Pearson’s Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff’s FAC for ten causes of action for employment-related claims.

For the following reasons, the **Defendant Chase’s Demurrer is sustained in its entirety with leave to amend. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.**

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their Demurrers and Motions to Strike in detailing their meet and confer efforts with Plaintiff’s counsel in the Declarations of Ashley